

# HOUSE . . . . . No. 6

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So much of the recommendations of the State Auditor (House, No. 3) as relates to improving government accountability. State Administration and Regulatory Oversight.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act improving government accountability.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 2 of chapter 11 of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by deleting, in line 2, the word “him”

3           SECTION 2. Section 2 of said chapter, as so appearing, is hereby amended by deleting,  
4   in line 3, the word “him” and inserting, in line 3, after the word “by” the following words:- the  
5   state auditor

6           SECTION 3. Section 2 of said chapter, as so appearing, is hereby amended by inserting,  
7   in line 4, after the word “the” the following word:- state

8           SECTION 4. Section 2 of said chapter, as so appearing, is hereby amended by deleting,  
9   in line 5, the word “his” and inserting, in line 5, after the word “of” the following word:- the

10          SECTION 5. Section 2 of said chapter, as so appearing, is hereby amended by deleting,  
11   in line 10, the word “his”

12           SECTION 6. Section 5 of said chapter, as so appearing, is hereby amended by deleting,  
13 in lines 2, 3, and 4, the words “a second, third and fourth deputy auditor, administrator of field  
14 operations of state audits and an administrator of field operations of authority audits” and  
15 inserting, in line 2, after the word “remove” the following words:- deputy auditors

16           SECTION 7. Section 6 of said chapter, as so appearing, is hereby amended by deleting,  
17 in lines 2, 3, 4, and 5, the words “Said employees shall be organized in five divisions, namely,  
18 the division of state audits, the division of authority audits, the division of federal audits, the  
19 division of contract audits and the division of local mandates.”

20           SECTION 8. Section 6B of said chapter, as so appearing, is hereby amended by inserting  
21 in line 12 after the word “C” the following words:- and the significant financial impacts under  
22 this section

23           SECTION 9. Section 6B of said chapter, as so appearing, is hereby amended by deleting,  
24 in line 19, the words “every five years”

25           SECTION 10: Section 6B of said chapter, as so appearing, is hereby amended by  
26 inserting, in line 21, after the word “towns.” the following words:- The division shall also  
27 review every five years newly enacted laws and administrative regulations which have a  
28 significant financial impact upon cities and towns.

29           SECTION 11. Section 6B of said chapter, as so appearing, is hereby amended by  
30 deleting, in line 23, the word “or” and inserting, in line 24, after the word “expenditures” the  
31 following words:- , or grant or increase exemptions from local taxation

SECTION 12. Section 6B of said chapter, as so appearing, is hereby amended by inserting after the fourth paragraph the following paragraph:-

Administrative agencies when adopting, repealing, or amending any rule or regulation that may have an impact on the cities and towns of the commonwealth shall provide the division with a copy of the local impact statement as described in Executive Order Number 145.

SECTION 13: Section 12 of said chapter, as so appearing, is hereby amended by inserting, in line 5, following the word “court” the following words:- and the general court itself,

SECTION 14: Section 12 of said chapter, as so appearing, is hereby amended by deleting, in lines 6 and 7, the words “and, for” and inserting, in line 6, following the word “revenue” the following words:- . For

SECTION 15: Section 12 of said chapter, as so appearing, is hereby amended by inserting, in line 9, after the word “times” the following words:- , as determined by the state auditor,

SECTION 16: Section 12 of said chapter, as so appearing, is hereby amended by inserting, in line 9, after the words “require the” the following word:- timely

SECTION 17: Section 12 of said chapter, as so appearing, is hereby amended by inserting, in line 9, after the word “production” the following words:- , as determined by the state auditor, but not later than ten business days following any request,

SECTION 18: Section 12 of said chapter, as so appearing, is hereby amended by inserting, in line 10, after the word “documents,” the following words:- physical records, forms,

52           SECTION 19: Section 12 of said chapter, as so appearing, is hereby amended by  
53   inserting, in line 10, after the word “records” the following words:- , including but not limited to  
54   electronic data, electronic databases, electronic applications, and electronic systems in their  
55   native format, including any personally identifiable information, protected health information, or  
56   other confidential information contained therein,

57           SECTION 20: Section 12 of said chapter, as so appearing, is hereby amended by  
58   deleting, in lines 10 and 11, the words “to any matter within the scope of” and inserting, in line  
59   10, after the word “relating” the following words:- in any way to

60           SECTION 21: Section 12 of said chapter, as so appearing, is hereby amended by  
61   deleting, in line 12, the words “returns. In” and inserting, line 12, after word “tax’ the following  
62   words:-returns.

63           In

64           SECTION 22: Section 12 of said chapter, as so appearing, is hereby amended by  
65   deleting, in lines 17, 18, and 19, the words “; provided, however, that each entity shall be audited  
66   at least once every 3 years and an entity shall be subject to audit as often as the state auditor  
67   determines it necessary. The” and inserting, in line 17, after the word “entities” the following  
68   words:- . The state auditor shall audit each entity as often as determined by the state auditor, but  
69   not less than once every five years, based upon an identification of risk in statewide processes or  
70   programs or agency specific operations and activities.

71           The

SECTION 23: Section 12 of said chapter, as so appearing, is hereby amended by deleting, in line 23, the words “within the scope of any such” and inserting, in line 22, after the word “records” the following words:- relating in any way to an

SECTION 24: Section 12 of said chapter, as so appearing, is hereby amended by deleting, in line 26, the words “States. In any audit report of” and inserting, in line 26, after the word “United” the following words:- States.

For all audits issued by the department of the state auditor where it has identified findings relative to

SECTION 25: Section 12 of said chapter, as so appearing, is hereby amended by deleting, in lines 30, 31, and 32, the following words “issued by the department of the state auditor, wherein there appears adverse or critical audit results, the state auditor may require a response, in writing, to such audit results.” and inserting, in line 30, after the word “court,” the following words:- the auditee shall provide a written response to the department of the state auditor.

SECTION 26: Section 12 of said chapter, as so appearing, is hereby amended by inserting, in line 33, after the word “shall” the following words:- contain a detailed description of the auditee’s plans to address the findings and recommendations contained in the audit report, and shall

SECTION 27: Section 12 of said chapter, as so appearing, is hereby amended by deleting, in lines 34, 35, 36, 37, 38, 39, 40, 41, and 42, the words “A copy of the response shall be filed with the appropriate secretariat, the secretary of administration and finance, the cognizant executive board in the case of an authority, and the house and senate committees on

94 ways and means. The state auditor shall notify the appropriate secretariat, the secretary of  
95 administration and finance, the cognizant executive board in the case of an authority, and the  
96 house and senate committees on ways and means in the event of an agency's failure to respond  
97 or of the filing of unresponsive answers."

98 SECTION 28: Section 12 of said chapter, as so appearing, is hereby amended by  
99 deleting, in lines 44 and 45, the following words "examine; provided, however, that in" and  
100 inserting, in line 44, after the word "to" the following words:- examine.

101 The department of the state auditor may require a corrective action plan. The state  
102 auditor may prescribe forms and issue guidelines governing an auditee's corrective action plan.  
103 If the final audit report issued by the department of the state auditor requires a corrective action  
104 plan, the head of the entity audited shall file the corrective action plan within the timeframe  
105 required by the state auditor. The auditee's corrective action plan shall be filed with the state  
106 auditor, the governor, the president and minority leader of the senate, the speaker and minority  
107 leader of the house of representatives, and the chairman and ranking minority members of the  
108 senate committee on post audit and oversight, and the chairman and ranking minority members  
109 of the house committee on post audit and oversight.

110 In

111 SECTION 29: Section 12 of said chapter, as so appearing, is hereby amended by  
112 deleting, in line 61, the following words "county. On" and inserting, in line 61, after the word  
113 "or" the following words:- county.

114 On

115           SECTION 30: Section 12 of said chapter, as so appearing, is hereby amended by  
116 deleting, in line 69, the words “fraud. The” and inserting, in line 69, after the word “involve” the  
117 following words:- fraud.

118           The

119           SECTION 31: Section 12 of said chapter, as so appearing, is hereby amended by  
120 inserting, in line 72, after the word “books,” the following word:- physical

121           SECTION 32: Section 12 of said chapter, as so appearing, is hereby amended by  
122 inserting, in line 72, after the word “records” the following words:- , documents, forms,

123           SECTION 33: Section 12 of said chapter, as so appearing, is hereby amended by  
124 inserting, in line 72, after the word “activities” the following words:- , including but not limited  
125 to electronic data, electronic databases, electronic applications, and electronic systems in their  
126 native format, including any personally identifiable information, protected health information, or  
127 other confidential information contained therein,

128           SECTION 34: Section 12 of said chapter, as so appearing, is hereby amended by  
129 inserting, in line 77, after the word “necessary” the following words:- , as determined by the  
130 state auditor,

131           SECTION 35: Section 12 of said chapter, as so appearing, is hereby amended by  
132 inserting, in line 91, after the words “activities,” the following words:- as defined in this  
133 paragraph,

134           SECTION 36: Section 12 of said chapter, as so appearing, is hereby amended by  
135 deleting, in line 92, the words “vendor. The” and inserting, in line 92, the following words:-  
136 vendor.

137           The

138           SECTION 37: Section 12 of said chapter, as so appearing, is hereby amended by  
139 inserting, in line 101, after the word “the” the following word:- timely

140           SECTION 38: Section 12 of said chapter, as so appearing, is hereby amended by  
141 inserting, in line 101, after the word “production” the following words:- , as determined by the  
142 state auditor, but not later than ten business days following any request,

143           SECTION 39: Section 12 of said chapter, as so appearing, is hereby amended by  
144 inserting, in line 101, after the word “documents,” the following words:- physical records, forms,

145           SECTION 40: Section 12 of said chapter, as so appearing, is hereby amended by  
146 inserting, in line 102, after the word “records” the following words:- , including but not limited  
147 to electronic data, electronic databases, electronic applications, and electronic systems in their  
148 native format, including any personally identifiable information, protected health information, or  
149 other confidential information contained therein,

150           SECTION 41: Section 12 of said chapter, as so appearing, is hereby amended by  
151 deleting, in lines 102 and 103, the words “to any matter within the scope of such” and inserting,  
152 in line 102, after the word “relating” the following words:- in any way to an

153           SECTION 42: Section 12 of said chapter, as so appearing, is hereby amended by  
154 inserting, in line 105, after the word “books,” the following words:- physical



155           SECTION 43: Section 12 of said chapter, as so appearing, is hereby amended by  
156 deleting, in line 105, the following word:- and

157           SECTION 44: Section 12 of said chapter, as so appearing, is hereby amended by  
158 inserting, in line 105, after the word “activities,” the following words:- documents, and forms,  
159 including but not limited to electronic data, electronic databases, electronic applications, and  
160 electronic systems in their native format, including any personally identifiable information,  
161 protected health information, or other confidential information contained therein,

162           SECTION 45: Section 12 of said chapter, as so appearing, is hereby amended by  
163 deleting, in lines 106 and 107, the words “to any matter within the scope of the” and inserting, in  
164 line 106, after the word “relating” the following words:- in any way to an

165           SECTION 46: Section 16 of said chapter, as so appearing, is hereby amended by  
166 deleting, in line 4, the words “and shall devote his entire time” and inserting, in line 4, after the  
167 word “experience” the following words:- . The director’s time shall be devoted entirely

168           SECTION 47: Section 16 of said chapter, as so appearing, is hereby amended by  
169 deleting, in line 5, the word “he” and inserting, in line 5, after the word “as” the following  
170 words:- the state auditor

171           SECTION 48: Section 17 of said chapter, as so appearing, is hereby amended by  
172 inserting, in line 6, after the word “assistance” the following words:- , or any other agency or  
173 department,

174           SECTION 49: Section 17 of said chapter, as so appearing, is hereby amended by  
175 inserting, in line 7, after the word “said” the following words:- agencies or

176           SECTION 50: Section 17 of said chapter, as so appearing, is hereby amended by  
177 inserting, in line 21, after the word “services” the following words:- , and any other agency or  
178 department administering any assistance program,

179           SECTION 51: Section 17 of said chapter, as so appearing, is hereby amended by  
180 deleting, in line 22, the words “records and accounts” and inserting, in line 22, after the word  
181 “such” the following words:- physical records, forms, vouchers, and other records, including but  
182 not limited to electronic data, electronic databases, electronic applications, and electronic  
183 systems in their native format, including any personally identifiable information, protected health  
184 information, or other confidential information contained therein

185           SECTION 52: Section 17 of said chapter, as so appearing, is hereby amended by  
186 deleting, in line 23, the words “and may require the production of books, documents and  
187 vouchers”